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Attachments

RFI on AI Action Plan -- Authors Guild Comments



**Before the Networking and Information Technology Research and Development (NITRD)
National Coordination Office (NCO), National Science Foundation
Request for Information on the Development of an Artificial Intelligence (AI) Action Plan**

**Comments of the Authors Guild
March 14, 2025**

The Authors Guild thanks the Office of Science and Technology Policy and the Networking and Information Technology Research and Development (NITRD) National Coordination Office (NCO) of the National Science Foundation for the opportunity to provide comments on the development of an Artificial Intelligence (AI) Action Plan.¹ The Guild is a national nonprofit association of over 15,000 professional writers of all genres. Its members include leading historians, biographers, academicians, journalists, and other writers of nonfiction and fiction whose works have appeared in the most influential and well-respected publications in every field. The Guild has a fundamental interest in ensuring that works of authorship and the rights of authors are protected, and that the hard work and talents of American authors are rewarded so that they can keep writing, as intended by the framers of the United States Constitution. The Guild believes that it is crucial for our culture and the future of democracy to ensure that our literature and arts remain vibrant and diverse.

The Guild urges the Administration to ensure that any policies established or recommended by the AI Action Plan respect the central role of copyright law as a driver of the nation's economy and culture. To be sure, AI offers valuable benefits in many areas of life, including as a tool that authors and other creators can use to enhance their creative works, just as they have done with technological developments throughout history. But the process by which AI companies trained their large language models (LLMs)—copying massive numbers of copyrighted works without their creators' consent, control, or compensation—is not only grossly unfair; it also will, if allowed to continue unabated, decimate the creative industries that contribute trillions of dollars to U.S. GDP and employ millions of Americans. These industries should not be forced to subsidize the tech sector by surrendering their valuable intellectual property for the development of products from which they reap no economic benefit—and that, in fact, are used to mass-produce machine-generated works to compete with human authors.

Future development of generative AI systems can and must be based on mutually beneficial partnerships between technology companies and the creative professions. This can be realized

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by promoting voluntary licensing arrangements like those that are already rapidly proliferating throughout the marketplace.

1. Use of copyrighted works without permission to train AI systems is a major threat to the U.S. creative industries

To date, the rapid development of generative AI systems has depended on mass-scale copyright infringement. The overwhelming majority of the materials used to “train” generative AI systems are copyright-protected works that were scraped from the internet without authorization from, or compensation to, their owners. AI training requires ingestion of massive quantities of preexisting works. The major text-generating LLMs, such as Open AI’s GPT, Google’s LAMDA, and Meta’s LLaMA, and Anthropic’s Claude, all were trained on hundreds of thousands of books, plus datasets that include millions of news articles and books scraped from the internet. All the book datasets that we are aware of were knowingly copied from well-known pirate ebook sites. Other books used for training were swept in from web crawls that included other pirate sites. (*e.g.*, Common Crawl, which has 60 billion domains scraped over 12 years).

Equally important, the value of any LLM depends directly on the quality of the materials used to train it. The ability of LLMs to generate text that is grammatically and stylistically well written, and acceptable to today’s readers (linguistically and also in terms of modern concepts and understandings) is dependent having ingested relatively recent high-quality texts—meaning books, stories, articles, and blogs, often those with the highest value in the marketplace. The phrase “garbage in, garbage out” refers to this phenomenon. Put simply, if AI developers want their LLMs to produce high-quality outputs, they need high-quality inputs, and they have sought out published, commercially valuable books precisely for that reason. Indeed, just this week OpenAI CEO [Sam Altman announced](#) a new AI model that is “good at creative writing.”² From everything we know about how AI models are trained and work, it is certain that this new AI model can write well because it was trained specifically on professionally written, copyrighted material.

Books are valuable—a single book often takes years to write and edit, and the authors, publishers and others in the chain need to be paid for the work or the books would not be produced and published. That makes them good training material for LLMs and it is also why copyright-protected books are rarely legally made available on the open internet. Yes, ebooks are available for purchase, but only on sophisticated e-commerce platforms like Amazon, Apple, and Bookshop that have security and do not allow the books to be scraped. So, when the large LLM companies decided that they needed books for training to improve their LLMs and that they would not bother to ask permission, they had to resort to scraping major pirate ebook sites, such as LibGen and Z-Library and their mirror sites—all of which are foreign-based and out of reach of U.S. law. These are notorious pirate sites that publishers, the Authors Guild and U.S. law

² Dan Milmo, ChatGPT firm reveals AI model that is ‘good at creative writing,’ The Guardian (Mar. 12, 2025), <https://www.theguardian.com/technology/2025/mar/12/chatgpt-firm-reveals-ai-model-that-is-good-at-creative-writing-sam-altman>

enforcement have been trying to take down for years. For instance, in 2017 in *Elsevier v. Sci-Hub*, the U.S. District Court for the Southern District of New York ruled that Sci-Hub was infringing and enjoined the use of sci-hub.org, libgen.org, and related domains, but the operators, who are based in Russia, just moved on to other domains.³ Last year, in *Cengage Learning v. Does 1-50*, a group of academic publishers succeeded in a civil suit against Libgen, but again with no practical relief, as the book dataset was simply moved to other sites.⁴

Thus, AI companies' insistence that their training materials consist only of works that are publicly available on the open internet is disingenuous at best. They knowingly ingested illegal copies of copyrighted books that authors never uploaded to the internet and that they have no ability to have taken down. These companies built their businesses by taking and exploiting the valuable content of authors' works without permission, without giving them any control over how their works appear (or not) in outputs, or a penny of compensation. This represents a vast transfer of wealth whereby creative industries are effectively forced to subsidize the tech sector. It is no different than if an AI company appropriated and refused to pay for the energy resources and infrastructure necessary to operate its data centers. Not only is this self-evidently unfair, but it incentivizes the continued widespread piracy of books and other copyrighted works, directly threatening jobs across the creative industries that are so vital to the U.S. economy.⁵

The harm is compounded on the output side. The use of AI systems to flood the market with machine-generated works will devastate creators' livelihoods, perversely forcing them to compete against knockoffs that their own works were used to generate. In the book market, generative AI systems are already being used to produce low-quality ebooks that attempt to compete with authors' works. We have seen examples of AI-generated books dominating Amazon's best-seller lists in certain categories, resulting in fewer copies sold by human authors who write in those categories. We are also seeing so-called publishers using AI to generate books on closely related or very similar topics that pop up for sale almost immediately after the human author listed their book for pre-order, thus preempting the sale of the human-authored works. Generative AI is also being used to create unauthorized derivative works, such as a developer using ChatGPT to write the concluding books in George R.R. Martin's *A Song of Ice and Fire* series.⁶ All these uses take money directly out of authors' and publishers' hands.

³ Quirin Schiermeier, US court grants Elsevier millions in damages from Sci-Hub, *Nature* (June 22, 2017), <https://www.nature.com/articles/nature.2017.22196>; Judgment, *Elsevier Inc. v. Sci-Hub*, 15-cv-4282, doc. no. 87 (S.D.N.Y. June 21, 2017).

⁴ Ashley Belanger, Pirate library must pay publishers \$30M, but no one knows who runs it, *Ars Technica* (Sept. 26, 2024), <https://arstechnica.com/tech-policy/2024/09/pirate-library-must-pay-publishers-30m-but-no-one-knows-who-runs-it/>

⁵ Robert Stoner & J  ssica Dutra, *Copyright Industries in the U.S. Economy: The 2024 Report*, INT'L INTELL. PROP. ALL. (Feb. 2025) (finding that in 2023, the core copyright industries contributed more than \$2 trillion to U.S. GDP and employed 11.6 million workers), https://www.iipa.org/files/uploads/2025/02/IIPA-Copyright-Industries-in-the-U.S.-Economy-Report-2024_ONLINE_FINAL.pdf.

⁶ Rebekah Valentine, Someone Used ChatGPT to Finish the Game of Thrones Book Series, *IGN*, <https://www.ign.com/articles/someone-used-chatgpt-to-finish-the-game-of-thrones-book-series>

Freelance journalists and professional writers of web and marketing content are also reporting losing work at an alarming rate as a result of clients switching to AI. An Authors Guild member who writes marketing and web content reported losing 75% of their work, and a content writer featured in a *Washington Post* story about ChatGPT's impact on writers stated that he had lost half of his annual income.⁷ These losses have ripple effects throughout the entire professional writing ecosystem, as most book authors sustain their profession with other writing-related work, including freelance journalism and writing web and marketing content. Loss of freelance work that supplements book income will hamper writers from focusing on their book projects. As a result, we will have fewer talented writers who can devote much of their professional lives to writing—meaning fewer great books and less diversity in what gets published.

All this comes at a time when writers are already facing unprecedented hurdles in earning a living. Between 2009 and 2018, authors' median incomes dropped 42%.⁸ Our most recent authors' earnings survey found that the median writing-related income for full-time authors in 2022 was just over \$20,000, with only half of that from books.⁹ The median income for commercial (non-academic) traditionally published full-time authors from all writing related activities—which includes speaking, journalism, teaching, editing, and coaching—was \$25,000 and only \$12,000 from books. Looking at all authors, including those who reported writing part-time, the median book income was \$2000 in 2022, and the median income from books plus other writing related work was \$5000. When we factor in the additional income losses that generative AI will add to the mix of technological and economic disruptions in the markets from which writers derive income, the ability of most authors to stay in the profession becomes all the more doubtful.

2. The Administration should support voluntary licensing efforts rather than new copyright exceptions or compulsory licenses

AI companies have attempted to defend their unauthorized copying by arguing that it is permitted under the “fair use” exception to copyright law.¹⁰ That proposition—which we believe to be wholly without merit—is currently being tested in court: to date, nearly forty copyright infringement lawsuits have been brought against AI companies (including a class action led by the Authors Guild). If, as we fully expect, the courts hold that unauthorized training of professionally-created copyrighted works is *not* fair use, AI companies have indicated that they will seek legislation to create a statutory exception or a compulsory license allowing them to use

⁷ Pranshu Verma and Gerritt de Vynck, ChatGPT took their jobs. Now they walk dogs and fix air conditioners, *Washington Post* (June 2, 2023),

<https://www.washingtonpost.com/technology/2023/06/02/ai-taking-jobs/>

⁸ Authors Guild Survey Shows Drastic 42 Percent Decline in Authors Earnings in Last Decade, <https://authorsguild.org/news/authors-guild-survey-shows-drastic-42-percent-decline-in-authors-earnings-in-last-decade/>

⁹ Key Takeaways from the Authors Guild's 2023 Author Income Survey, <https://authorsguild.org/news/key-takeaways-from-2023-author-income-survey/>

¹⁰ Codified at 17 U.S.C. § 107.

copyrighted works for AI training. The Administration should oppose any such efforts.¹¹ Instead, it should work to support voluntary, freely negotiated licensing arrangements between copyright owners and AI companies—a market that already exists and is growing by the day.

In the publishing sector alone, there have been numerous reported agreements through which publishers have licensed works to AI companies for training. Licensors include several major trade and academic publishers, including Wiley, Taylor & Francis, Oxford University Press, Cambridge University Press, Sage, DeGruyter Brill, and Harper Collins.¹² News organizations are doing so as well. Recent deals include licenses from the Associated Press,¹³ NewsCorp,¹⁴ Reuters,¹⁵ Le Monde,¹⁶ The Financial Times,¹⁷ Vox Media,¹⁸ The Atlantic,¹⁹ and Dotdash Meredith²⁰ (which owns popular magazine brands such as People and Entertainment Weekly). Third-party licensing platforms are also rapidly emerging, such as Created by Humans, which has partnered with the Authors Guild to provide a way for authors to license their works for AI uses on terms that they themselves choose.²¹ Other companies like Calliope,²² Human Native,²³

¹¹ The Constitution places authority over copyright with Congress, and therefore any changes to the scope of copyright protection would require legislation. See U.S. Const. art. I, § 8, cl. 8 (“The Congress shall have Power . . . To promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries.”).

¹² See, e.g., Jim Milliot, Wiley Creates AI Partnership Program, Publishers Weekly (Oct. 17, 2024), <https://www.publishersweekly.com/pw/by-topic/industry-news/industry-deals/article/96248-wiley-creates-ai-partnership-program.html>; Matilda Battersby, Taylor & Francis set to make £58m from AI in 2024 as it reveals second partnership, The Bookseller (July 25, 2024), <https://www.thebookseller.com/news/taylor-francis-set-to-make-58m-from-ai-in-2024-as-it-reveals-second-partnership>; Heloise Wood, Wiley and Oxford University Press confirm AI partnerships as Cambridge University Press offers ‘opt-in,’ The Bookseller (Aug. 1, 2024), <https://www.thebookseller.com/news/wiley-cambridge-university-press-and-oxford-university-press-confirm-ai-partnerships>; Authors Guild, Harper Collins AI Licensing Deal, <https://authorsguild.org/news/harpercollins-ai-licensing-deal/>. For a continually updated list of current agreements, see <https://sr.ithaka.org/our-work/generative-ai-licensing-agreement-tracker/>.

¹³ Nitasha Tiku, Newspapers want payment for articles used to power ChatGPT, Wash. Post (Oct. 20, 2023), <https://www.washingtonpost.com/technology/2023/10/20/artificial-intelligence-battle-online-data/>.

¹⁴ <https://investors.newscorp.com/news-releases/news-release-details/news-corp-and-openai-sign-landmark-multi-year-global-partnership>

¹⁵ <https://www.axios.com/2024/10/25/meta-reuters-ai-news-facebook-instagram>

¹⁶ https://www.lemonde.fr/en/about-us/article/2024/03/13/le-monde-signs-artificial-intelligence-partnership-agreement-with-open-ai_6615418_115.html

¹⁷ <https://www.ft.com/content/33328743-ba3b-470f-a2e3-f41c3a366613>

¹⁸ <https://www.voxmedia.com/2024/5/29/24166483/vox-media-openai-strategic-content-and-product-partnership>

¹⁹ <https://www.theatlantic.com/press-releases/archive/2024/05/atlantic-product-content-partnership-openai/678529/>

²⁰ <https://dotdashmeredith.mediaroom.com/2024-05-07-Dotdash-Meredith-Announces-Strategic-Partnership-with-OpenAI,-Bringing-Iconic-Brands-and-Trusted-Content-to-ChatGPT>

²¹ Authors Guild Partners with Created by Humans to Empower Authors in the AI Era (Oct. 9, 2024), <https://authorsguild.org/news/ag-partners-with-created-by-humans-to-empower-authors-in-ai-era/>.

²² <https://calliopenetworks.ai/>

²³ <https://www.humannative.ai/>

and Personal Digital Spaces²⁴ are also building and deploying licensing platforms. All these efforts demonstrate that voluntary collective licensing solutions for AI training are technologically and economically feasible for developers and are becoming more widely available every day.

Any new copyright exceptions or compulsory licenses—the latter of which would force copyright owners to license their works at government-established rates—would severely disrupt these markets. Indeed, as the Copyright Office has long recognized, compulsory licenses “conflict with the fundamental principle that authors should enjoy exclusive rights to their creative works, including for the purpose of controlling the terms of public dissemination.”²⁵ Therefore, such licenses are appropriate “only in circumstances of genuine market failure and only for as long as necessary to achieve a specific goal.”²⁶ Far from failing, AI licensing markets are flourishing. The Administration should oppose any efforts to interfere with these voluntary transactions.

Instead, any legislation in this space should facilitate voluntary licensing by promoting a stable, well-functioning marketplace. Specifically, we support legislation in the following areas:

Transparency

Companies that make generative AI models commercially available should be required to publicly disclose or to notify copyright owners of any unlicensed copyrighted works that were used in the training datasets, including the URL of any online location from which the data was obtained. This will ensure safety of the models and prevent use of sensitive, harmful, or illegally harvested data in the training. It also will further encourage AI developers to work with copyright owners on licensing solutions.

Several legislative approaches to accomplish this have been suggested. The EU has adopted legislation requiring developers of general-purpose AI models to make publicly available a “sufficiently detailed summary” of the content used for training.²⁷ Similarly, California requires developers to post a “high-level summary of the datasets,” including the sources or owners of the datasets and whether they contain data protected by copyright, trademark, or patent.²⁸ Another

²⁴ <https://www.personaldigitalspaces.com/>

²⁵ U.S. Copyright Office, *Legal Issues in Mass Digitization: A Preliminary Analysis and Discussion Document*, at 38 (2011), <https://copyright.gov/docs/massdigitization/USCOMassDigitizationOctober2011.pdf>

²⁶ *Id.*

²⁷ EU AI Act, Regulation (EU) 2024/1689, art. 53(1)(d), https://eur-lex.europa.eu/legal-content/EN/TXT/HTML/?uri=OJ:L_202401689; see also Generative AI Copyright Disclosure Act of 2024, H.R. 7913, 118th Cong., 2d Sess. (2024) (bill requiring developers to submit a notice to the Copyright Office containing a sufficiently detailed summary of any copyrighted works used in the dataset, as well as the URL for any publicly available dataset).

²⁸ A.B. 2013, https://leginfo.legislature.ca.gov/faces/billNavClient.xhtml?bill_id=202320240AB2013

proposed approach would create an administrative subpoena process allowing copyright owners to obtain information from a developer about whether their works were used in training.²⁹

While any of these approaches would be preferable to the status quo, the Guild believes that AI developers should be required to disclose more than merely a summary of their training datasets. To fully achieve the goals of transparency and accountability, they should be required to make publicly available the sources of the copyrighted works used to train their models. This obligation should not be unduly burdensome. If the datasets were compiled in-house, then the developers already know what data is included and where it is located. If the datasets are obtained from third parties, the developers can require that the information be provided to them.

Labeling of AI Outputs

Content that is AI-generated or significantly AI-manipulated should be labeled as such. It appears—based on comments authors have reported receiving from readers, as well as comments made on various platforms—that most readers prefer to read human authored books (reading is in part about connecting with the author) and feel deceived if they find out that a work they have purchased was AI-generated. They need a way to determine whether something was human written before purchasing it.³⁰ Labeling AI-generated content is also essential for ensuring that markets for copyrighted works are not inundated with AI-generated content that consumers will purchase unwittingly, diluting the copyright industry ecosystems and incentives to create and invest in new works and eventually displacing human creators.

We agree with the labeling requirements under the recently adopted EU AI Act, which require all general-purpose AI system providers “to ensure the outputs of the AI system are marked in a machine-readable format and detectable as artificially generated or manipulated.”³¹

Antitrust Exemption

As discussed, AI companies have entered into licensing agreements with multiple publishers to acquire catalogs for training. In many cases, however, publishers do not possess the rights to license out works for AI training, or their contract with the author is unclear. Moreover, rights to many out-of-print books (which is most books that are more than several years old) have reverted to the authors, and the majority of books published today are self-published, meaning that the author retains the rights. To license these books, as well as many freelance literary texts for which the writer retains rights, AI companies need a means of licensing directly from the authors. And because it is highly inefficient for them to do so on a case-by-case basis, authors

²⁹ Transparency and Responsibility for Artificial Intelligence Networks (TRAIN) Act, S. 5379, 118th Cong., 2d Sess. (2024).

³⁰ That is why the Authors Guild has created a certification mark, “Human Authored,” to protect authors and readers until such time as we can ensure that AI-generated material is labeled as such. See <https://authorsguild.org/human-authored/>

³¹ EU AI Act art. 50(2).

need to be able to form collective management organizations (CMOs) to offer blanket licenses, similar to those that have existed in the music industry for decades.

What stands in the way of such licensing is that antitrust laws may impose risks to forming CMOs that set rates on behalf of their members. We therefore are seeking legislation clarifying that these specific AI-use collective licenses will not violate U.S. antitrust laws. This could take the form of legislation that would allow certain creators (for instance, in the text and image sectors) to collectively bargain with AI companies for a specified period for purposes of negotiating licensing fees.

3. Copyright protection should not be extended to AI-generated works

It is well settled that materials generated by machines or other non-humans are ineligible for copyright protection.³² The Administration should oppose any legislation to extend copyright or *sui generis* rights to AI-generated works. Granting such protection would undermine the market for human-created works without providing any countervailing benefit to society.

If AI-generated works were entitled to the same protection as human-created works, or even a lesser *sui generis* form of protection, it would give their producers (who in the book field for now are mostly scam-like operations that appear to have no writing or publishing background) unfair leverage in the marketplace and would further incentivize the distribution of AI-generated content to the public, crowding and diluting the marketplace to the point that copyright incentives no longer function as intended. Few human creators will be able to earn enough to sustain a profession and the human quality of work produced by professionals—those who have talent and have trained in their careers for many years—will disappear. Since all human creativity starts with the human creators, our literary works and arts—and other media that rely heavily on human written work, such as film, will suffer tremendously as a result.

These costs cannot be justified by any purported need to incentivize AI development. Tech companies do not need additional incentives beyond those they already have in the form of patent, copyright, and trade secret protection for their technologies. Generative AI technology development until now has occurred without copyright incentives on outputs, and we see no rationale for providing such protection to encourage further innovation in that area. Nor do the users of generative AI systems need additional legal incentives to generate content, which can be produced quickly and cheaply using these systems. Indeed, as the U.K. Intellectual Property Office recently noted, there is no evidence that laws protecting computer-generated works (which exist in a few countries) have led to any increase in AI outputs or investment in AI technology as compared to countries without such laws.³³

³² See Copyright Registration Guidance: Works Containing Material Generated by Artificial Intelligence, 88 Fed. Reg. 16190, 16191-92 (Mar. 16, 2023) (discussing case law).

³³ U.K. Intellectual Property Office, Copyright and AI: Consultation at 27, ¶¶ 152-53 (Dec. 2024), https://assets.publishing.service.gov.uk/media/6762c95e3229e84d9bbde7a3/241212_AI_and_Copyright_Consultation_print.pdf